

Thus, there is no dispute that Plaintiffs complied with C.C.P. § 871.24(a) by sending a prelitigation demand for repurchase to Defendant, or that Defendant complied with C.C.P. § 871.24(e)(1) by making an offer to repurchase the Vehicle within 30 days of Plaintiffs' demand. (UMF ## 12-15.) There is also no dispute that Defendant did not comply with C.C.P. § 871.24(e)(2) by completing the repurchase within 60 days of the notice/demand. (UMF ## 12, 17-18.) Defendant argues, without citing any statutory or case law, that Plaintiffs are prohibited from bringing this suit despite Defendant's failure to complete the repurchase within 60 days because Plaintiffs waited 27 days before accepting Defendant's repurchase offer, cutting Defendant's compliance time in half. (Reply, p. 3:4-16.) However, § 871.24(e) prohibits a consumer from making request for civil penalties under Civ. Code § 1794(c) only if the manufacturer meets both requirements – it makes an offer to repurchase or replace the vehicle and completes the repurchase/replacement within 60 days of the notice. (C.C.P. § 871.24(e)(1)-(2).)

Furthermore, § 871.24(h) states that if the consumer makes the required demand “and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.” (C.C.P. § 871.20(h).) There is nothing in the statute that provides for a longer time to complete repurchase/replacement based on when the offer is accepted.

Statutory interpretation requires a three-step analysis. (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 825-826.) First, the court examines the actual language of the statute and gives the words their ordinary meaning; if the language is unambiguous, the language controls. (*Ibid.*) Second, if the meaning of the words is not clear, the courts must look to the legislative history. (*Ibid.*) Third, if the clear meaning is still not revealed, the court is to apply reason, practicality and common sense to interpret the words to make them workable and reasonable. (*Ibid.*) Here, the language of C.C.P. § 871.24 is unambiguous: a claim for civil penalties under the Song Beverly Act is only prohibited if the manufacturer both offers to repurchase/replace the vehicle *and* completes the repurchase/replacement within 60 days. It is undisputed that did not happen in this case. Therefore, Defendant fails to meet its burden of establishing that Plaintiffs' claims are precluded under C.C.P. § 871.24.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601705	LARKIN VS STATE OF CALIFORNIA, ACTING BY AND THROUGH THE CALIFORNIA HIGHWAY PATROL	DEMURRER

Tentative Ruling: Defendants' Demurrer as to the 1st Cause of Action is overruled; as to the 2nd Cause of Action it is sustained with 20 days leave to amend.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Uncertainty

Under Code of Civil Procedure section 430.10(f), a special demurrer for uncertainty lies only if the pleading is so incomprehensible that the defendant cannot reasonably respond. The Complaint is not uncertain because it sets forth the ultimate facts required to apprise Defendants of the specific basis upon which relief is sought. For example, the pleading identifies Officers Garcia and Doe 1 as CHP employees, details the observable physical symptoms of medical distress Decedent exhibited upon their arrival, alleges that the officers detained Decedent with actual knowledge that he required urgent medical aid, and specifies an unreasonable 23-minute delay in calling emergency medical services that contributed to his death. (Compl. ¶¶ 13-16, 20 and 22). The inclusion of additional references to Doe defendants or emergency personnel does not obscure or render unintelligible these direct factual claims against the named Defendants. Furthermore, Defendants' ability to detail the precise timeline, facts, and underlying legal theories within their own moving papers demonstrates that the Complaint is sufficiently definite to enable a clear response (*Khoury, supra*, 14 Cal.App.4th 612, 616.) These causes of action are not so unintelligible that Moving Defendants cannot respond.

First Cause of Action – Negligence

The elements of a cause of action for negligence are: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) "Negligence may be alleged in general terms; that is, it is sufficient to allege an act was negligently done without stating the particular omission which rendered it negligent. There is no requirement that [the plaintiff] identify and allege the precise moment of the injury, or the exact nature of the wrongful act." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747-748.) In order to state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.)

However, "[t]ort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions." (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Gov. Code § 815(a).) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the

employee is immune. (Gov. Code § 815.2.) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.)

The first cause of action identifies Gov. Code § 815.2 as the basis for liability for the State. (Complaint, ¶ 28.) This is sufficient for pleading purposes regardless of Moving Defendants arguments regarding Health and Safety Code § 1797.84 (as cited in the complaint) not imposing a mandatory duty on public entities or whether the specific allegation regarding negligence hiring, supervision, and training is a proper theory within the first cause of action. In determining whether complaint is sufficient, as against demurrer, on ground that it does not state facts sufficient to constitute a cause of action, if it appears that plaintiff is entitled to any relief against defendant, the complaint will survive the demurrer, even if the facts may not be clearly stated or though plaintiff may demand relief to which he is not entitled under facts alleged. (*Augustine v. Trucco* (1954) 124 Cal.App.2d 229, 237.) In fact, it is error for trial court to sustain demurrer when plaintiff has stated cause of action under any possible legal theory. (*Howard Jarvis Taxpayers' Assn. v. Board of Supervisors* (1996) 41 Cal.App.4th 1363, 1372.)

As to Officer Garcia, Moving Defendants argue various immunities shield Officer Garcia from liability and that there is no duty. The general rule is that, “one has no duty to come to the aid of another. A person who has not created a peril is not liable in tort merely for failure to take affirmative action to assist or protect another unless there is some relationship between them which gives rise to a duty to act.” (*Williams v. State of California* (1983) 34 Cal.3d 18, 23.) A police officer, paramedic or other public safety worker is as much entitled to the benefit of this general rule as anyone else. (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1185; see also *Zepeda v. City of Los Angeles* (1990) 223 Cal.App.3d 232.) This rule and the statutory immunities identified in the demurrer notwithstanding, liability may be imposed “if an officer voluntarily assumes a duty to provide a particular level of protection, and then fails to do so [citations], or if an officer undertakes affirmative acts that increase the risk of harm to the plaintiff.” (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1129.) The complaint alleges such an undertaking via Officer Garcia detaining Decedent and failing to recognize what are alleged to be obvious signs of medical distress. (Complaint, ¶¶ 13-14.) This is sufficient.

Second Cause of Action – Wrongful Death

As to the second cause of action, Plaintiff fails to plead an actionable statutory basis for liability against the public entities and the officer. Under the Government Claims Act (Gov. Code, § 815, subd. (a)), all public entity tort liability in California is strictly statutory, abolishing common law tort liability against public entities. Direct tort liability against a public entity such as the California Highway Patrol (CHP) must be grounded in a specific statute declaring liability or setting forth a specific duty of care. Here, Plaintiff's reliance on Health and Safety Code section 1797.84 fails because that statute is merely definitional under the Emergency Medical Services Act and does not impose a mandatory statutory obligation or duty of care on CHP or its peace officers.

Furthermore, peace officers owe no general legal duty to members of the public absent a special relationship, which Plaintiff has failed to establish. Because a claim for wrongful death under Code of Civil Procedure section 377.60 is wholly derivative of an underlying actionable tort or statutory breach, Plaintiff's failure to establish statutory liability or a viable underlying negligence claim against Officer Garcia or CHP deprives the wrongful death cause of action of its essential legal foundation, rendering it insufficient as a matter of law. (*County of San Bernardino v. Superior Court* (2022) 77 Cal.App.5th 1100, 1107-1108; see also *County of Santa Clara v. Superior Court* (2023) 14 Cal.5th 1034, 1045.)